

102	Nguyen vs. Botros 24-01400928	Defendant, Dina Moussa, D.D.S. moves for an order sustaining her demurrer to the second cause of action of Plaintiff, Michelle Nguyen's First Amended Complaint. Dr. Moussa also moves for an order striking Plaintiff Michelle Nguyen's First Amended Complaint in its entirety, or alternatively, striking the punitive damage claim at paragraph 14(a)(2). "If the complaint is amended, a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby. The defendant shall answer the amendments, or the complaint as amended, within 30 days after service thereof, or such other time as the court may direct, and judgment by default may be entered upon failure to answer, as in other cases" (Code Civ. Proc. § 471.5.) Here, while it appears that Plaintiff, Michelle Nguyen, served a First Amended Complaint, no First Amended Complaint appears to have been filed with the Court. Because it appears that Plaintiff has not filed the First Amended Complaint with the Court, the Court is unable to rule on a pleading that is not part of the court's record. It appears that a motion to amend the complaint was attempted to be filed and rejected in December 2024. Since there is no first amended complaint, the demurrer and motion to strike the first amended complaint are taken off-calendar. <i>Clerk to give notice.</i>
103	Brown vs. Flagship Post Acute, LLC 24-01413162	Defendant Flagship Post Acute, LLC dba Pelican Ridge Post Acute (erroneously named dba Sun Mar Health Care) ("Defendant" or "FLAGSHIP") seeks an order compelling Plaintiff Patricia Brown ("Plaintiff") to arbitrate the controversy alleged in the Complaint. Defendant contends that Plaintiff entered into a binding voluntary arbitration agreement with Defendant on August 6, 2021, but Plaintiff has refused to submit to arbitration. Plaintiff contends that there is no agreement to arbitrate because Plaintiff denies ever signing